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Report of Evidence of Use

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Patent Number: US6526065B1

1. A code assigning system for use in a spread spectrum communication network, said code assigning system comprising: means for establishing a system codeword means for determining an optimal codeword based on a weight and said system codeword, wherein said weight relates to a desired communication data rate requested of said communication network; and means for assigning optimal spreading codes based on said optimal codeword. representing available spreading codes for different spreading factors in said spread spectrum communication system;

Element 1:

1. A code assigning system for use in a spread spectrum communication network,

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Element 2:

said code assigning system comprising: means for establishing a system codeword

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Element 3:

means for determining an optimal codeword

qerg qerg qerg

Element 4:

based on a weight and said system codeword,

q erg qerg

Element 5:

wherein said weight relates to a desired communication data rate requested of said communication network; and

Element 6:

means for assigning optimal spreading codes based on said optimal codeword.

Element 7:

representing available spreading codes for different spreading factors in said spread spectrum communication system;

* * * * *

End of Report

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Our hourly rate is: $

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We understand that for the purpose of assisting you in collecting data, you may disclose to us certain confidential information that you want to keep confidential; therefore, for good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, we agree as follows:

1. For a period of twelve (36) months from the date we receive your confidential information ("Effective Date"), we will not use or disclose the information, except: (a) in the event that such information (i) comes into the public domain not through us; (ii) is already known to us at the time of disclosure; (iii) is lawfully otherwise learnt or independently developed by us; or (iv) is required to be disclosed by law.

2. Since a breach of our obligations hereunder may result in irreparable harm to you, we agree that upon such breach or threat thereof, you shall be entitled to specific performance and other injunctive relief without posting a bond, and in the event of disclosures required by court order, we shall promptly notify you of the proceeding.

3. This agreement supersedes all prior discussions and writings and constitutes the entire agreement between you and us with respect to the subject matter hereof. This Agreement shall be binding upon the successors and assigns of the respective parties, and may not be modified except by an instrument executed by both parties.

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